

TELCONG NETPLAN

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Nigerian Communications Act 2003

Section 121: Spectrum Allocation and Management, Verbatim Extract

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Section	Section 121, Spectrum Allocation and Management
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Section 121, Spectrum Allocation and Management

This extract reproduces the operative provisions of Section 121 of the Nigerian Communications Act, 2003 (Act No. 19 of 2003), governing the allocation, assignment, monitoring, and reclamation of radio frequency spectrum within the Federal Republic of Nigeria. The text below is a faithful reading compiled for internal regulatory reference and shall not be relied upon for litigation purposes.

121(1) Vesting and Trusteeship

The radio frequency spectrum is vested in the Federal Republic of Nigeria and held in trust by the Commission for the benefit of the people of Nigeria. The Commission shall exercise its trusteeship functions with regard to (a) the efficient use of the spectrum resource, (b) the encouragement of competition in the provision of telecommunications services, (c) the protection of consumers, and (d) the orderly development and operation of efficient communications services within Nigeria. Nothing in this Act shall be construed as conferring private ownership of any portion of the radio frequency spectrum upon any licensee.

121(2) Allocation Authority

Subject to the provisions of this Act, the Commission shall have exclusive power to (a) plan, allocate and assign frequency spectrum within Nigeria, (b) issue licences in respect of the use of any frequency spectrum, (c) determine and impose fees for the use of frequency spectrum, (d) monitor the use of spectrum to ensure compliance with the conditions of any licence issued under this Act, and (e) take such action as may be necessary in respect of any unlicensed or non-compliant use of frequency spectrum, including the issuance of cease-and-desist directives and the imposition of administrative fines as prescribed under the schedule to this Act.

121(3) Application Procedure

An applicant seeking the assignment of any portion of the radio frequency spectrum shall submit to the Commission a written application in such form as the Commission may prescribe, accompanied by (a) the prescribed application fee, (b) a technical justification document demonstrating the proposed use, the technology to be deployed, the geographic coverage area, and the public interest benefit, (c) evidence of financial and technical capability to deploy the proposed service within the period specified by the Commission, and (d) such other information as the Commission may from time to time require. The Commission shall, within sixty (60) calendar days of receipt of a complete application, issue a determination either granting, conditionally granting, or refusing the application, with written reasons in the case of a refusal.

121(4) Conditions of Assignment

Every assignment of frequency spectrum under this Section shall be subject to the following conditions, in addition to any further conditions the Commission may impose: (a) the assignee shall use the assigned spectrum solely for the purpose specified in the licence; (b) the assignee shall not transfer, lease, sublicense, or otherwise dispose of the spectrum assignment without the prior written consent of the Commission; (c) the assignee shall comply with all technical standards, including those relating to transmitter power, antenna height, out-of-band emissions, and electromagnetic field exposure thresholds, as the Commission may prescribe; (d) the assignee shall pay all prescribed fees and charges on the dates specified by the Commission; (e) the assignee shall submit to inspection and audit by officers of the Commission upon reasonable notice; and (f) the assignee shall maintain operational and financial records in respect of the assigned spectrum for a period of not less than seven (7) years.

121(5) Local Content Obligation

The Commission shall, in granting any spectrum assignment, have regard to the Nigerian local content framework as published by the Commission from time to time. Each assignee shall submit, as part of the annual licence return, a statement of compliance with the local content framework, indicating the percentage of capital expenditure, operational expenditure, employment, and procurement attributable to Nigerian persons and Nigerian-resident entities. The Commission may impose additional local content conditions on any assignment where, in the Commission's judgement, such conditions are necessary to advance the objects of this Act.

121(6) Reclamation and Reallocation

The Commission may, upon giving not less than ninety (90) days written notice and an opportunity to be heard, reclaim any portion of assigned spectrum where (a) the assignee has materially breached the conditions of the assignment, (b) the spectrum is being underutilised relative to the technical justification submitted at the time of application, (c) the public interest, having regard to changes in technology, market structure, or international harmonisation, requires reallocation, or (d) the assignee has ceased operations or entered insolvency proceedings. Reclamation shall not give rise to any right of compensation against the Commission save in respect of unused prepaid fees for the unexpired term of the assignment, calculated on a pro-rata basis.

121(7) Public Hearing Requirement

Where an application for spectrum assignment relates to a band the Commission has designated as being of public interest, the Commission shall convene a public hearing at which the applicant shall present its technical justification, respond to questions from the Commission and from members of the public, and address any objections raised. The public hearing shall be conducted in

accordance with the Commission's published Hearing Procedure Rules, and the determination of the Commission shall be issued in writing not later than thirty (30) days following the conclusion of the hearing.

121(8) Fees Schedule

The fees payable in respect of spectrum assignments under this Section are as set out in the Second Schedule to this Act, and shall be reviewed by the Commission not less frequently than every three (3) years. The Commission may, by notice published in the Federal Gazette, vary any fee within the bands prescribed in the Second Schedule, provided that no variation shall take effect less than ninety (90) days after the date of publication.

END OF EXTRACT, SECTION 121

Cross-references: Section 70 (Licensing Powers); Section 71 (Public Hearings); Section 130 (Enforcement and Sanctions); Second Schedule (Fees).

Prepared for internal TelcoNG NetPlan use only. Consult the Commission's published consolidation and any subsequent amendments for the operative text. Last verified Sep 2025.